

Tentative Rulings for June 10, 2026 Department 7

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 7 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 766 6465**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2500616	RESILIENCE HOSPICE VS LOFTON	MOTION TO ASCERTAIN VALUE OF SHARES

Tentative Ruling: Plaintiffs Resilience Hospice’s Motion to Ascertain Value of Shares is granted; Court confirms the \$0.00 valuation and Defendants are ordered to transfer to Resilience Hospice their shares in Resilience Hospice, totaling 4900 shares free and clear of any claims, interests, liens, or encumbrances by June 22, 2026.

“In response to a corporate shareholder filing for involuntary dissolution, section 2000 prescribes the procedure for a shareholder defendant, or the corporation, to avoid dissolution by purchasing the shares of the party who initiated dissolution.” (*Crane v. R. R. Crane Inv. Corp.* (2022) 82 Cal.App.5th 748, 756.) “The objective of section 2000 is to provide an alternative to dissolution through a buy-out by the holders of 50 percent or more of the shares of the corporation.” (*Trahan v. Trahan* (2002) 99 Cal.App.4th 62, 75.)

Corp. Code § 2000(a) provides:

[I]n any suit for involuntary dissolution, or in any proceeding for voluntary dissolution initiated by the vote of shareholders representing only 50 percent of the voting power, the corporation or, if it does not elect to purchase, the holders of 50 percent or more of the voting power of the corporation (the “purchasing parties”) may avoid the dissolution of the corporation and the appointment of any receiver by purchasing for cash the shares owned by the plaintiffs or by the shareholders so initiating the proceeding (the “moving parties”) at their fair value.

Upon application of the purchasing parties, the court “shall stay the winding up and dissolution proceeding and shall proceed to ascertain and fix the fair value of the shares owned by the moving parties.” (Corp. Code § 2000(b).) Following an appraisal, the court “shall enter a decree which shall provide in the alternative for winding up and dissolution of the corporation unless payment is made for the shares within the time specified by the decree.” (Corp. Code § 2000(c).)

The Appraiser submitted her Conclusion of Value as of the April 4, 2025 valuation date to determine the Fair Value of a 49% equity interest of Lofton Enterprises, Inc. dba Resilience Hospice. (Plaint., Ex. A.) The Appraiser noted that in April 2025, the Company’s Medicare billing privileges were revoked following a Medicare administrative action related to an Additional Documentation Request (ADR). (Hallstrom Decl., Ex. A, p. 2.) “Given that Medicare and Medi-Cal represent the primary reimbursement sources for hospice services, loss of these billing privileges materially impairs the Company’s ability to operate as a going concern.” (Id.) The Appraiser listed \$1,405,757 in liabilities as of the valuation date, including \$425,000 for loans from Christine Ojeda. (Id, p. 4.) The Appraiser indicated that, as of the Valuation Date, the Company’s liabilities exceeded the net realizable value of its assets, resulting in insolvency on a balance sheet basis. (Id.) The Appraiser concluded that the Fair Value of a 49% equity interest in Resilience as of April 4, 2025 is \$0. (Id.)

Defendants do not dispute this conclusion. However, they request clarification regarding whether the \$425,000 loan from Ojeda was received prior to the valuation date since only liabilities as of that date should be included in the valuation. In her declaration dated April 14, 2026, Ojeda state, “I have loaned the Company over \$425,000 after the valuation date to cover the Company’s on-going expenses, such as real estate leases, payroll to doctors and employees, and medical supplies.” (Ojeda Decl., ¶ 6.) In her Supplemental Addendum to Conclusion of Value, the Appraiser clarified that the original valuation included the \$425,000 based on information received from management. (Supp. Decl. of Hallstrom, Ex. A.) However, subsequent information provided by counsel indicates that \$132,179 was advanced prior to the valuation date with the additional advance occurring after. (Id.) The Appraiser indicated that this clarification does affect the conclusion and Resilience remains insolvent even if only \$139,179 from Ojeda is included in the liabilities. (Id.)

2.

CASE #	CASE NAME	HEARING NAME
CVRI2504523	BROWN VS EQUITY LIFESTYLE PROPERTIES, INC.	ANTI-SLAPP MOTION

Tentative Ruling: Defendant MHC Thousand Trails Limited Partnership’s ANTI-SLAPP Motion is denied without prejudice.

Plaintiff is ordered to file an amended complaint within 30 days.

The Legislature enacted the anti-SLAPP procedure due to “a disturbing increase in lawsuits brought primarily to chill the valid exercise of constitutional rights of freedom of speech and petition for the redress of grievances.” (C.C.P. § 425.16(a).) It is a two-step process where the moving defendant has the burden to first establish that the allegations or claims arise from protected activity, and then the plaintiff has the burden to demonstrate that the claim has minimal merit. (*Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1009.)

“SLAPP law is silent as to the issue of amendment.” (*Oakland Bulk v. Oversized Terminal, LLC v. City of Oakland* (2020) 54 Cal.App.5th 738, 750.) However, “the purpose of the anti-SLAPP statute is to unmask SLAPP actions masquerading as ordinary lawsuits and to resolve them expeditiously.” (*Ibid.*)

In *Oakland Bulk*, the defendant filed a demurrer and motion to strike that were set for hearing weeks before the scheduled hearing date for its SLAPP motion. (*Oakland Bulk, supra*, 54 Cal.App.5th at 751.) The appellate court rejected the defendant’s argument that “the preferred procedure is to decide the SLAPP motion first, before the demurrer.” (*Ibid.*) Rather, the appellate court held that the trial court judge did not err in allowing plaintiffs to amend their complaint and defer ruling on the SLAPP motion, which would require analyzing “what would have been a superseded complaint,” until another motion was forthcoming. (*Id.* at 750-751.) The appellate court concluded that “proceeding in

such fashion would promote judicial efficiency and economy—and not thwart any purpose of the anti-SLAPP law.” (*Id.* at 751.)

The facts in *Oakland Bulk* reflect the procedural history of the case at hand. Although MHC TT LP attempted to file its anti-SLAPP motion earlier, the motion was ultimately not filed until five days before the hearing on Defendants’ demurer and motion to strike. The Court sustained the demurrer in part, and allowed Plaintiff leave to amend the SAC. Proceeding with the anti-SLAPP motion on the SAC now would be analyzing what will soon be a superseded complaint, as in *Oakland Bulk*.

Even if the Court wished to proceed with the motion, doing so would prejudice Plaintiff. Although Plaintiff previously filed an opposition on the merits of the anti-SLAPP motion (likely not realizing that the initial motion had been rejected for filing by the Court Clerk), Plaintiff’s opposition was filed before the Court sustained the demurrer to the SAC. As noted above, seven causes of action survived the demurrer against MHC TT LP. The resubmitted anti-SLAPP motion, filed on May 21, 2026, is currently unopposed.

Accordingly, Plaintiff has not specifically addressed the seven remaining causes of action on their merits. Because the party opposing the anti-SLAPP motion has the burden of proof to establish a probability that they will prevail on whatever claims are asserted against the defendant under C.C.P. § 425.16(b), Plaintiff will be prejudiced if the Court proceeds with the anti-SLAPP motion on the merits of the seven remaining causes of action.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2505408	THE CHANG FAMILY TRUST, BY AND THROUGH ITS CO-TRUSTEES, JOHN H. CHANG AND AILEEN HSIAOLIN WANG	APPLICATION FOR RIGHT TO ATTACH ORDER

Tentative Ruling: Hearing for the Right to Attach is continued to 6/17/27.

Request to narrowly seal Defendants’ opposition is granted.

“The public has a First Amendment right of access to civil litigation documents filed in court and used at trial or submitted as a basis for adjudication. [Citation.] Substantive courtroom proceedings in ordinary civil cases, and the transcripts and records pertaining to these proceedings, are ‘ “presumptively open.” ’ [Citation.]” (*Savaglio v. Wal-Mart Stores, Inc.* (2007) 149 Cal.App.4th 588, 596–597, 57 Cal.Rptr.3d 215.) As *NBC Subsidiary* explained, “the public has an interest, in *all* civil cases, in observing and assessing the performance of its public judicial system, and that interest strongly supports a general right of access in ordinary civil cases.” (*NBC Subsidiary, supra*, 20 Cal.4th at p. 1210, 86 Cal.Rptr.2d 778, 980 P.2d 337.) “

Turning to the first of the *NBC Subsidiary* findings, in footnote 46 *NBC Subsidiary* listed examples of various interests that courts have identified as potentially constituting an overriding interest to justify closure of courtroom proceedings and by inference sealing otherwise open court documents. They include an accused's interest in a fair trial; a civil litigant's right to a fair trial; protection of minor victims of sex crimes from further trauma and embarrassment; privacy interests of a prospective juror during individual voir dire; protection of witnesses from embarrassment or intimidation so extreme that it would traumatize them or render them unable to testify; protection of trade secrets; protection of information within the attorney-client privilege; enforcement of binding contractual obligations not to disclose; safeguarding national security; ensuring the anonymity of juvenile offenders in juvenile court; ensuring the fair administration of justice; and preservation of confidential investigative information. (*NBC Subsidiary, supra*, 20 Cal.4th at p. 1222, fn. 46, 86 Cal.Rptr.2d 778, 980 P.2d 337.)

Here, Petitioner request to seal of proprietary business and financial information, including its Incentive and Compensation and Change Control Plan and related agreements are the type of overriding interest *NBC Subsidiary* that justify sealing.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2506046	ESPARZA VS CR&R INCORPORATED	MOTION TO BE RELIEVED AS COUNSEL FOR RICK ESPARZA

Tentative Ruling: Plaintiff's Motion to be Relieved as Counsel is granted upon compliance with CRC §3.1362(d).

5.

CASE #	CASE NAME	HEARING NAME
CVRI2600253	MALHOTRA VS RIVIAN AUTOMOTIVE, INC.	DEMURRER TO ANSWER ON COMPLAINT

Tentative Ruling: Plaintiff's Demurrer as to the 28th and 44th Causes of Action is sustained, and overruled as to the remainder.

The California Code of Civil Procedure provides three grounds for a demurrer to an answer:

- a) The answer does not state facts sufficient to constitute a defense.
- b) The answer is uncertain. As used in this subdivision, "uncertain" includes ambiguous and unintelligible.
- c) Where the answer pleads a contract, it cannot be ascertained from the answer whether the contract is written or oral.

CCP § 430.20. CCP § 430.050 provides that a demurrer to an answer may be taken in whole or to one or more of the defenses.

CCP § 430.20(a) provides that a demurrer to an answer be made on the ground that an answer "does not state facts sufficient to constitute a defense." However, there are

no reported cases addressing the factual detail required to plead an affirmative defense. As such, once the court entertains a demurrer to an answer, it invites endless demurrers to the successive amended answers because the amount of facts defendant must plead is unknown.

While not addressing a demurrer to an answer, the case of *FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367 is instructive. There, the court set forth the historic purpose for permitting a demurrer to an answer: A plaintiff moving for summary judgment had to disprove defendant's affirmative defenses, so plaintiffs made sure, by way of demurrer, that those affirmative defenses were pled in very fact-specific allegations. (Id. at 384-85.) The summary judgment statute, however, was amended in 1992, eliminating the requirement. (See *Oldcastle Precast, Inc. v. Lumbermens Mutual Casualty Co.* (2009) 170 Cal.App.4th 554, 565.) Now that the defendant, and not the plaintiff, has the burden on summary judgment with regard to affirmative defenses, the presence of stray defenses are merely surplusage, and a demurrer to an answer accomplishes little more than harassing the answering party. Perhaps more importantly, a pleading need only give fair notice of the issues involved. (See, e.g., *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-50; Weil & Brown, Cal. Practice. Guide: Civ. Pro. Before Trial (The Rutter Group 2015), § 6:128.) To the extent that a party requires clarification, they may propound Form Interrogatory 15.1 for a statement of all facts upon which affirmative defenses are based.

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349 [court shall not "sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment"]; see also *Kong v. City of Hawaiian Gardens Redevelopment Agency* (2002) 108 Cal.App.4th 1028, 1037 .) The burden is on the party opposing the demurrer to show the Court that a pleading can be amended successfully. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

Pleading at Issue

Defendant argues the demurrer is moot because Defendant has filed a Second Amended Pleading which makes the First Amended Pleading obsolete. Every party has the right to amend its pleadings once without leave of court. (*Hedwall v. PCMV, LLC* (2018) 22 Cal.App.5th 564, 574.) If Plaintiff has demurred to or filed motion to strike the answer, defendant can amend the answer without leave up to the date for filing opposition to the demurrer or motion to strike. After that date, defendant may amend the answer upon stipulation of the parties. (CCP §472.)

Here is a timeline of the relevant events in this case:

January 6, 2026	Complaint filed
March 26, 2026	Answer filed
April 9, 2026	Plaintiff filed Demurrer to Answer
April 23, 2026	Defendant filed First Amended Answer (FAA)
May 5, 2026	Plaintiff filed Demurrer to FAA
May 28, 2026	Defendant filed Opposition to Demurrer to FAA

To date, no Second Amended Answer has been filed with the Court. As Plaintiff notes, Defendant has already filed an amended pleading once without leave of court and any subsequent amended pleadings would require leave of court. Defendant has not sought leave of court to file a Second Amended Answer.

Defendant's Opposition is incorrect. The Demurrer to the FAA is not moot because there is no Second Amended Answer that supersedes the FAA. Accordingly, the court must address the merits of the demurrer to the FAA.

Plaintiff challenges the 3rd, 9th-26th, 29th, 31st, 34th, 37th-43rd, and 45th Affirmative Defenses arguing they are insufficient because they simply allege legal conclusions and do not allege any facts to constitute a defense. Plaintiff argues these defenses raise "new matter" under CCP §431.30(b).

Affirmative defenses can only be understood relative to the pleading to which an answer responds. In the present case, the factual allegations of the complaint are sparse, and in the absence of discovery, the challenged affirmative defenses are appropriately pleaded. To the extent that Plaintiff requires further clarification, they may propound Form Interrogatory 15.1 for a statement of all facts upon which the affirmative defenses are based.

Plaintiff also challenges the 7th Affirmative Defense (SOL), 44th Affirmative Defense (Arbitration), and 28th Affirmative Defense (Reservation of Rights). The 7th Affirmative Defense is sufficiently pled as Defendant identifies the relevant subdivision of the sections on which it relies and complies with CCP §458, which states: "In pleading the statute of limitations it is not necessary to state the facts showing the defense, but it may be stated generally that the cause of action is barred by the provisions of section _____ (giving the number of the section and subdivision thereof, if it is so divided, relied upon) of the Code of Civil Procedure"

The 44th and 28th Affirmative Defenses for arbitration and reservation of rights are not affirmative defenses.